

Raju v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 22 August 2014 · Criminal Misc. Writ Petition No. 14223 of 2014 ·
Quash refused; CrPC 41/41-A arrest; compounding under Supply Code

HEADNOTE

An FIR under Section 135 of the Electricity Act that discloses a cognizable offence is not quashed. Arrest, if proposed for an offence not entailing a sentence of more than seven years, must follow Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, compounding is to be sought under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner, Raju, sought quashing of an FIR dated 30 July 2014, registered as Case Crime No. 212 of 2014 under Section 135 of the Electricity Act, 2003 at Police Station Gonda, District Aligarh. Arrest had not been made. He contended that the alleged offence could not attract a sentence of more than seven years, so arrest should not be mechanical, and that the offence was compoundable. The State and the complainant opposed the writ.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

Section 135 FIR — quash, compounding, arrest

HOLDING

The FIR under Section 135 of the Electricity Act disclosed a cognizable offence, so the prayer to quash it was refused. Arrest had not been made; mere apprehension of breach of Section 41(1)(b) read with Section 41-A CrPC did not warrant interference, those provisions being expected to be followed, with a complaint to the Magistrate if they were not. If arrest were to be made for an offence not entailing a sentence of more than seven years, the police were directed to comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence was compoundable, the petitioner could seek compounding under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED SECTION 135 OFFENCE WAS COMPOUNDABLE ON THE FACTS

The Court left compounding to a Supply Code, 2005 application if the offence was compoundable, without deciding availability.

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